

21CHCV00365 21CHCV00365

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-07-02

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Case Number: 21CHCV00365 Hearing Date: July 2, 2026 Dept: F47

Dept. F47

Date: 7/2/26

Case #21CHCV00365

MOTION TO ENTER
JUDGMENT

Motion filed on 2/24/26.

MOVING PARTY: Plaintiff Discover Bank

RESPONDING PARTY: Defendant Florence Lankford

RELIEF REQUESTED: An order
entering judgment in favor of Plaintiff and against Defendant due to
Defendant's default under the terms of a written settlement agreement between
Plaintiff and Defendant.

RULING: The motion is placed off calendar.

On 5/7/21, Plaintiff Discover Bank (Plaintiff) filed this
action for account stated and open book account against Defendant Florence
Lankford (Defendant). (Schlick Decl.

¶2). Before Defendant made an appearance
in this action, Plaintiff and Defendant entered into a written Settlement
Agreement pursuant to which the parties agreed that judgment would not be

entered as long as Defendant made certain periodic payments toward the settlement amount. (Id. ¶¶3-4, Ex.1). Pursuant to the Settlement Agreement, this action was thereafter dismissed with the Court retaining jurisdiction under CCP 664.6. (Id. ¶5, Ex.1 ¶3, Ex.2). Defendant has defaulted under the Settlement Agreement and failed to cure such default. (Id. ¶¶6-7, Ex.3).

On 2/14/23, pursuant to CCP 664.6, Plaintiff filed its first motion seeking an order setting aside the dismissal of this action and entering judgment in favor of Plaintiff and against Defendant due to Defendant's default under the terms of a written Settlement Agreement between Plaintiff and Defendant. The motion was originally scheduled for hearing on 5/23/23.

On 5/23/23, the first motion was continued to 7/20/23 due to issues with the service of the motion. Specifically, the Court noted that the Settlement Agreement provides that a motion to obtain judgment shall be served on Defendant, or Defendant's counsel, if applicable, by mail at Defendant's "address of record." (See 5/23/23 Minute Order citing Haney Decl., Ex.1 ¶5). The proof of service for the first motion's original hearing date indicated that it was mailed to Defendant on 2/13/23. However, since Defendant never appeared in this action, there was/is no "address of record" for Defendant in the court file. Nor was/is an "address of record" for Defendant set forth in the Settlement Agreement. Since there was no response to the motion from Defendant, there was no way to confirm that the motion was properly served on Defendant and the matter was continued to 7/20/23. (See 5/23/23 Minute Order).

Thereafter, on 6/1/23, Plaintiff filed a "Notice of Continued Motion for Setting Aside Dismissal and Entering Judgment Pursuant to Defendant's Default Under Settlement and Release Agreement" and a proof of service for the notice indicating that it was mailed to Defendant on 5/31/23 at the same unconfirmed address where the motion was served by mail for the 5/23/23 hearing date. On 7/12/23, Plaintiff filed a proof of service indicating that after two unsuccessful attempts at personal service, the prior motion and supporting documents were served on Defendant via substitute service on 7/8/23 and, thereafter, mailed on 7/11/23. (See Proof of Service filed 7/12/23). The substitute service

on 7/8/23 and the subsequent mailing were untimely for the 7/20/23 hearing date. Since there was no response to the motion to cure the defect in notice, the hearing on the first motion was placed off calendar. (See 7/20/23 Minute Order).

On 10/30/24, Plaintiff filed a second motion. While the title of the second motion indicated that it was a "Motion for Setting Aside Dismissal and Entering Judgment Pursuant to Defendant's Default Under Settlement and Release Agreement," the first paragraph of the notice merely asked the Court to "enter judgment in favor of Plaintiff and against Defendant Florence Lankford . . ." without requesting that the Court set aside the dismissal. (See Notice of (Second) Motion, p.1:28-p.2:5); CRC 3.1110(a).

No proof of service for the second motion had been filed and Defendant had not filed a response to the motion. Therefore, on 4/10/25, the hearing on the second motion was placed off calendar. (See 4/10/25 Minute Order). In its 4/10/25 ruling, the Court also noted that in violation of CRC 3.1110(f)(4) Plaintiff's counsel failed to electronically bookmark the exhibits attached to the declaration filed in support of the motion and warned counsel that failure to comply with this rule in the future may result in matters being continued so that papers can be resubmitted in compliance with the rule, papers not being considered and/or the imposition of sanctions. Id.

On 11/26/25, Plaintiff filed a third motion to enter judgment in favor of Plaintiff and against Defendant due to Defendant's default under the terms of the settlement agreement entered into between Plaintiff and Defendant pursuant to CCP 664.6. Despite the foregoing rulings regarding the need to personally serve Defendant with the motion because there is no address of record for Defendant, on 11/26/25, Plaintiff filed a proof of service for the motion indicating that the motion was mailed to Defendant on 11/26/25. Since no opposition or other response to the motion was filed, on 1/13/26, the third motion was placed off calendar. (See 1/13/26 Minute Order).

On 2/24/26, Plaintiff filed the instant motion to enforce settlement agreement seeking an order entering judgment in favor of Plaintiff and against Defendant due to Defendant's default under the terms of a written settlement agreement between Plaintiff and Defendant. The same day, despite all of the previous orders, Plaintiff filed a proof of service for the motion which indicates that

on 2/24/26, the motion was mailed to Defendant.

Once again, since Defendant has not appeared in the action and Defendant's address is not set forth in the Settlement Agreement, there is no way for the Court to confirm the address where the motion papers were mailed.

Since there is no opposition or other response to this fourth motion by Defendant to cure the notice defect, the motion is taken off calendar.